and that there was no third party bona fide purchaser since Defendant bought the subject property at the sale, and that the Trustees Deed Upon Sale had not yet been recorded, it was reasonable for Plaintiff to believe his position had substantial support. Both parties are to pay their own attorney's fees.

Conclusion

Based on the above, **Defendant's motion is GRANTED, and each party shall bear their own fees and costs.**

7. 9:00 AM CASE NUMBER: C25-00811
CASE NAME: A.V.P. VS. WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: WEST CONTRA COSTA UNIFIED SCHOOL DISTRICT
TENTATIVE RULING:*

Withdrawn by moving party.

8. 9:00 AM CASE NUMBER: C25-01235
CASE NAME: CHARLES CAUFFIELD VS. CATHERINE AMOURIS
HEARING ON DEMURRER TO: CROSS COMPLAINT OF CATHERINE AMOURIS - CONTINUED FROM 2/2/26
FILED BY:
TENTATIVE RULING:*

Plaintiff and cross-defendant Charles Cauffield ("Cross-Defendant") brings this demurrer to the Cross-Complaint of defendant and cross-complainant Catherine Amouris ("Cross-Complainant"), asserting that the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action do not state facts sufficient to constitute a cause of action. Specifically, Cross-Defendant argues that Cross-Complainant's fraud-based causes of action are barred by the statute of limitations and are not pleaded with the requisite specificity.

For the reasons discussed below, the Court sustains Cross-Defendant's demurrer to the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action, with leave to amend. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; California Rules of Court, Rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Paymon Hifai Decl., ¶¶ 1-2; Code Civ Proc., § 430.41.)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39

Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.*, at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

Background

Cross-Complainant and Cross-Defendant purchased property (the "Property") as co-owners. (Cross-Complaint, ¶¶ 6-12.) They were to split all costs and expenses evenly and eventually sell the Property and split the proceeds. (*Ibid*.) "In or around February 2022, Cross-Defendant failed to continue making payments for such agreed upon expenses . . . ." (*Id*., at ¶ 12.)

On May 1, 2025, Cross-Defendant filed an action in the Contra Costa Superior Court alleging eleven claims against Cross-Complainant, including: (1) quiet title; (2) fraud; (3) conversion; (4) breach of contract; (5) breach of the covenant of good faith and fair dealing; (6) intentional misrepresentation; (7) breach of fiduciary duty; (8) partition and sale of real property; (9) imposition of a constructive trust; (10); equitable estoppel; and (11) promissory estoppel. (Complaint, pp. 1-18.)

On July 21, 2025, Cross-Complainant filed a Cross-Complaint asserting five causes of action against Cross-Defendant, including: (1) declaratory relief; (2) intentional misrepresentation; (3) negligent misrepresentation; (4) fraud – suppression of fact; and (5) breach of contract. (Cross-Complaint, pp. 1-11.)

Discussion

Statute of Limitations - Second, Third and Fourth Causes of Action

Cross-Defendant argues that Cross-Complainant's second, third, and fourth causes of action based on fraud are time-barred. (Demurrer, p. 3; Reply, pp. 2-4.) Fraud (intentional misrepresentation), negligent misrepresentation, and fraud (suppression of fact) each have a three-year statute of limitation. (Code of Civ. Proc., §338, subd. (d).)

Cross-Defendant argues that due to Cross-Complainant's allegation in paragraph 46 of the Cross - Complaint that "Cross-Complainant is informed and believe and thereon allege that in or about December 2021, Cross-Defendant defrauded Cross-Complainant by failing to act in accord with Cross Defendant's rights, duties, and responsibilities under the Contract," shows that the cross-complaint should have been filed by December 2024, rather than July 2025. (Demurrer, p. 3:19-28.) The Court notes that this allegation at paragraph 46 only applies to the fourth cause of action (fraud-suppression of fact) because the intentional and negligent misrepresentation causes of action that are alleged at paragraphs 24 – 44, and incorporate all the prior paragraphs, but do not incorporate paragraph 46. (Cross-Complaint, pp. 5-8.)

Cross-Complainant, in their opposition, cites authority for the proposition that a cause of action does not accrue for statute of limitation purposes until the cause of action is complete with all of its elements. (Opposition, p. 5:12-22.) Cross-Complainant also argues that "[i]t is and remains Cross-Complainant's allegation that when the contract was entered into, Cross-Defendant Cauffield entered into the contract with a fraudulent purpose and without intent to honor his end of the bargain, thus when the fraudulent actions of Cross-Defendant happened. Assuming this to be true, Cross-Complainant did not learn of the fraudulent conduct until a few years later. It was this discovery that started the statute of limitation clock, not when the alleged fraud was committed." (Opposition, p. 6:7-12.) Cross-Defendant correctly points out in the Reply that although Cross-Complainant offers argument relating to delayed discovery in the opposition, this is not pled in the Cross-Complaint. (Reply, p. 3.)

"In order to rely on the discovery rule for delayed accrual of a cause of action, '[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.' [Citation.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.' " (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.) In *Fox*, the California Supreme Court further ruled that "under the delayed discovery rule, a cause of action accrues and the statute of limitations begins to run when the plaintiff has reason to suspect an injury and some wrongful cause, unless the plaintiff pleads and proves that a reasonable investigation at that time would not have revealed a factual basis for that particular cause of action." (*Id*. at 806.)

Here, Cross-Complainant alleges in paragraph 12 of the Cross-Complaint that "In or about February 2022, Cross-Defendant failed to continue making payments for such agreed upon expenses, thereby leaving Cross-Complainant to cover such costs by herself." This is the time that Plaintiff had reason to suspect an injury, especially as the fraud is alleged to be representations by Cross-Defendant "that expenses would be divided equally between the Parties," and "that Cross-Defendant had the financial stability to make such payment." (Cross-Complaint, ¶¶ 27-28, 38.) The suppression claim relies on an allegation that Cross-Defendant concealed his inability to cover his share of expenses. (*Id*., at ¶ 47.) Thus, by Cross-Defendant failing to pay his share in or around February 2022, Cross-Complainant had reason to suspect an injury at that point, and as those failures appear to have continued, it would not be long after that a wrongful cause should have been suspected.

"A demurrer based on a statute of limitations will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar … to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred." (*Committee for Green Foothills v. Santa Clara County Bd. of Supervisors* (2010) 48 Cal.4th 32, 42; *Lee v. Hanley* (2015) 61 Cal.4th 1225, 1232 [same].) Sometimes, "a pleading of 'on or about' fails to provide the requisite certainty for resolution of the issue," when the dates alleged are close to the dates needed to state a claim. (*Childs v. Cal*. (1983) 144 Cal.App.3d 155, 160.) However, in *Boscus* v. *Waldmann* (1916) 31 Cal.App. 245, the court explained that "the phrase ‘on or about’ should be held to mean either the day mentioned or a day in very near proximity thereto.” (*Id*., at p. 258.)

Here, based on Cross-Complainant’s allegation of missed payments beginning “in or about February 2022” and the filing of the Cross-Complaint three years *and five months* later, the Court finds that the Cross-Complainant does not properly allege that the fraud-based claims are within the statute of limitations. The date alleged of February 2022, is not very close to July, so even if the “in or around” were to be March or April, the claims are still barred by the statute of limitation absent delayed discovery. The Court sustains with leave to amend Cross-Defendant’s demurrer to the second (intentional misrepresentation), third (negligent misrepresentation), and fourth (fraud – suppression of fact) causes of action for being barred by the statute of limitation.

Although Cross-Complainant argues at page 6 of the Opposition that they “did not learn of the fraudulent conduct until a few years later,” this is not alleged in the Cross-Complaint as required by *Fox*. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808 [“ ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.’ ”].)

<u>Sufficiency of Fraud Allegations: Second, Third and Fourth Causes of Action</u>

Third Cause of Action – Intentional Misrepresentation

Cross-Defendant argues that Cross-Complainant’s fraud-based claims are not pleaded with the requisite particularity. (Demurrer, p. 4:11; Reply, pp. 4:25-5:26.) Cross-Complainant argues that their fraud claims are sufficiently pled, citing paragraphs 27-29, 30-32, 38-40, 41-43, 47, 48, 49, and 52-53, of the Cross-Complaint.

Generally, fraud must be pled with particularity. (*Hills Transportation Co. v. Southwest Forest Ind., Inc*. (1968) 266 Cal.App.2d 702, 707.) With regard to fraud claims, pleadings must allege facts as to “‘how, when, where, to whom, and by what means the representations were tendered.’” (*Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) The elements of negligent misrepresentation must be alleged with same level of particularity that is required to state a claim for intentional misrepresentation. (See *Small v. Fritz Companies, Inc*. (2003) 30 Cal.4th 167, 173–174.)

For the intentional misrepresentation claim, Cross-Complainant alleges “the how” as being the Cross-Defendant representing that he had the financial stability to be able to make the payments. (Cross-Complaint, ¶ 28.) The “when” is “at the time of entering into the contract. . .” (*Ibid*.) The to whom, is “to Cross-Complain[an]t. (*Ibid*.) The “means the representations were tendered” is not clear, however, as the Cross-Complaint only alleges that “Cross-Defendant made representations to Cross-Complain[an]t.” (*Ibid*.) This is ambiguous and insufficiently pleaded.

“To plead a cause of action for fraud, [one] must allege misrepresentation, knowledge of falsity, intent to defraud, justifiable reliance, and damage.” (*Tindell v. Murphy* (2018) 22 Cal.App.5th 1239, 1249.) With respect to these elements and this cause of action, the Court finds them sufficiently pled, apart from the insufficient particularity described above. (Cross-Complaint, ¶¶ 28-32.)

Fourth Cause of Action – Negligent Misrepresentation

Here, similar to above, Cross-Complainant has failed to plead the "means the representations were tendered," as the Cross-Complaint only alleges that "Cross-Defendant made representations to Cross-Complain[an]t." (Cross-Complaint, ¶ 38.)

"The elements of negligent misrepresentation are (1) the misrepresentation of a past or existing material fact, (2) without reasonable ground for believing it to be true, (3) with intent to induce another's reliance on the fact misrepresented, (4) justifiable reliance on the misrepresentation, and (5) resulting damage." (*Apollo Capital Fund LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) With respect to these elements and this cause of action, the Court finds them sufficiently pled. (Cross-Complaint, ¶¶ 38-43.)

Notably, the allegations from Cross-Complainant's intentional and negligent misrepresentation claims that the representations "induced" Cross-Complainant to enter into an agreement with Cross-Defendant, appear similar to promissory fraud or fraud in the inducement, although they are not so presented. (Cross-Complaint, ¶¶ 30, 39.)

Third Cause of Action – Fraud – Suppression of Fact

"A failure to disclose a fact can constitute actionable fraud or deceit in four circumstances: (1) when the defendant is the plaintiff's fiduciary; (2) *when the defendant has exclusive knowledge of material facts not known or reasonably accessible to the plaintiff*; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations that are misleading because some other material fact has not been disclosed." (*Collins v. eMachines, Inc*. (2011) 202 Cal.App.4th 249, 255, italics added.)

"[T]he elements of an action for fraud and deceit based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 868.) With respect to these elements and this cause of action, the Court finds them sufficiently pled.

With respect to the requisite particularity for this cause of action, there was no "representation" here because this is a failure to disclose claim. Although the intentional and negligent misrepresentation claims were insufficiently pled with respect to the means the representations were tendered, that is not an issue for this cause of action, which does not involve a false representation.

Further on this claim, Cross-Defendant cites paragraph 46 of the Cross-Complaint and argues that a breach of contract alone, without more, does not amount to fraud. Paragraph 46 does appear to assert that a failure to perform under the contract is one basis for this fraud-related claim, but the next paragraph alleges this fraud is also based on Cross-Defendant concealing an inability to cover his share of expenses as well as the severity of his financial impairment. (Cross-Complaint, ¶ 47.) Thus, Cross-Defendant's argument is unavailing.

Leave to Amend

"If the plaintiff has not had an opportunity to amend the complaint in response to the demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment." (*State of California v. Superior Court* (1984) 150 Cal.App.3d 848, 863-864.) Here, the Court will provide Cross-Complainant with leave to amend because it cannot be said that the causes of action challenged are incapable of amendment.

Ruling on the Demurrer

For the reasons stated above, Cross-Defendant's demurrer to the second (fraud), third (negligent misrepresentation), and fourth (fraud-suppression of fact) causes of action, is SUSTAINED WITH LEAVE TO AMEND. Cross-Complainant may file and serve an amended cross-complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, Rule 3.1320(g).) A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
***HEARING ON MOTION IN RE: COMPEL FURTHER VERIFIED RESPONSES CITY OF RICHMOND**
FILED BY:
****TENTATIVE RULING:****

Plaintiff Rassoul Malboubi ("Plaintiff") filed a Motion to Compel Further Verified Responses on October 30, 2025 (the "Motion to Compel Further Responses"). The Motion to Compel Further Responses was set for hearing on March 2, 2026. The motion is opposed.

Background

Plaintiff seeks further responses to discovery requests propounded on defendant City of Richmond (the "City"), including, it appears, form interrogatories and one or more sets of requests for production of documents. However, the precise discovery requests and responses at issue are unclear based on the papers filed, including because Plaintiff failed to file a Separate Statement pursuant to the requirements of Rule 3.1345 of the California Rules of Court ("CRC").

Analysis

As noted above, Plaintiff failed to file a Separate Statement in support of the Motion to Compel Further Responses. Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement, including a motion to compel further responses to interrogatories or a demand for inspection of documents. Rule 3.1345(a)(1)-(3); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025) ("Rutter Civ. Pro.") § 8:602.5.

There are very specific requirements for the formatting and content of a Separate Statement. See CRC 3.1345(c) ("A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response."). Among other things, a proper Separate Statement must set forth the full text of both the request and response. Id. at (c)(1)-(2). Attaching a meet and confer email or other correspondence to a motion does not satisfy